UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF MISSOURI
SOUTHERN DIVISION

LESLIE DENNIS MANNON, Plaintiff, vs. LACLEDE COUNTY, MO, et al. Defendants.	Case No. 6:26-cv-03197-MBB

DEFENDANTS' SUGGESTIONS IN SUPPORT OF THEIR MOTION TO DISMISS PLAINTIFF'S AMENDED COMPLAINT

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COME NOW Defendants Laclede County, Missouri, Linda Cansler, Amy Folsom, and LaRita Pope ("Defendants"), by and through the undersigned counsel, and for their Suggestions in Support of their Motion to Dismiss Plaintiff's Amended Complaint [Doc. 18], state the following:

I. Plaintiff's 42 U.S.C. § 1983, § 1985, § 1986 Claims (Counts I, II, VI, VII, X, Count XII) Should be Dismissed for Failure to State a Claim

Plaintiff asserts duplicative counts under 42 U.S.C. § 1983, § 1985, § 1986, seeking recovery for an interaction alleged to have occurred between Plaintiff, Ms. Cansler, and an unidentified poll worker Plaintiff suspects, but is not certain, is LaRita Pope. Counts I, II, VI, VII, X and XII of Plaintiff's Amended Complaint should be dismissed as to all Defendants.

A. Plaintiff's Claims Must Be Dismissed as to All Defendants Because Plaintiff Lacks Standing to Sue

A plaintiff must establish standing to bring suit. The Supreme Court requires a constitutional minimum of three elements: (1) an injury in fact, (2) that is fairly traceable to the challenged conduct of a defendant, and (3) that is likely to be redressed by a judicial decision. *Spokeo, Inc. v. Robins*, 136 S.Ct. 1540, 1547 (2016). "To establish injury in fact, a plaintiff must show that he or she suffered an invasion of a legally protected interest that is concrete and particularized and actual or imminent, not conjectural or hypothetical." *Id.* at 1548.

Plaintiff's fails to allege that Plaintiff was unable to vote, or that he was prevented from casting his vote by any of the Defendants. According to the Amended Complaint,

Plaintiff appeared at the polling place, obtained a ballot, and engaged in an interaction with polling workers. The Complaint contains no further allegation that Plaintiff was prohibited from casting his ballot in the election or was denied any legally protected right by the Defendants. Here, Plaintiff does not plead he sustained an injury in fact. Because he alleges no violation of a legally protected interest, he lacks standing to bring a claim under 42 U.S.C. § 1983, § 1985, or § 1986.

B. Plaintiff's Claims Must Be Dismissed as to Amy Folsom and LaRita Pope

Plaintiff's Amended Complaint asserts claims made under 42 U.S.C. § 1983 and § 1985 against Amy Folsom and LaRita Pope. In his Amended Complaint, Plaintiff alleges that Ms. Folsom was the "Prosecuting Attorney for Laclede County" See Plaintiff's Amended Complaint, ¶ 19. Plaintiff concedes that he does not know if he had any interaction with LaRita Pope, who may be two other unnamed individuals. See Plaintiff's Amended Complaint, ¶ 38.

The mechanism for holding individual government officials liable for the violation of a person's rights is 42 U.S.C. §1983. To sustain a claim for money damages against an individual under §1983, a pleading must allege personal involvement in the alleged constitutional deprivation. *Wright v. Smith*, 21 F.3d 496 (2d Cir. 1994); *Moffitt v. Town of Brookfield*, 950 F.2d 880, 885 (2nd Cir. 1991). This burden can be met one of four ways: "(1) direct participation in the infraction; (2) failure to remedy a wrong after learning of the violation; (3) creating or allowing a policy to continue under which the violation

occurred; or (4) gross negligence in supervision of subordinates who caused the violation." *McKeon v. Daley*, 101 F.Supp.2d 79, 91 (N.D.N.Y. 2000).

As to Counts I and II, there are no allegations that Ms. Folsom was present at the polling site or that she played any participatory role in the events that occurred there. Nor are there allegations that Ms. Folsom learned of the alleged violation of voting rights or that she created or allowed any relevant policy. Likewise, Plaintiff has not alleged with any certainty that Ms. Pope was present or involved in any of the conduct for which he complains. There are no allegations that they were present at the polling place, knew of the alleged deprivation of rights, were involved in the creation of any policy to deprive Plaintiff of his rights, or played any role in supervising subordinates who are alleged to have caused a violation. Accordingly, the Amended Complaint should be dismissed as against Ms. Folsom and Ms. Pope.

Concerning Count VII, Plaintiff's Amended Complaint does not contain sufficient allegations to support a claim that Ms. Folson denied Plaintiff access to court. Although Plaintiff contends that Ms. Folsom engaged in some manner of fraudulent conduct that confused Plaintiff relating to applicable statutes of limitations, Plaintiff fails to plead the alleged fraudulent conduct sufficiently to state a cause of action. A plaintiff must state all averments of fraud with particularity, except malice, intent, knowledge and any other condition of mind which can be averred. *O'Neal v. Stifel, Nicolaus & Co., Inc.*, 996 S.W.2d 700, 703 (Mo. App. E.D. 1999).

C. Plaintiff's Claim Must Be Dismissed as to Laclede County

Counts I, II, VI, and XII seek to hold Laclede County liable under a theory of respondeat superior. Section 1983 "creates a claim against any person who, acting under the color of State law, abridges rights created by the Constitution and law of the United States." *Gilmore v. Amityville Union Free School Dist.*, 305 F.Supp.2d 271, 277 (E.D.N.Y. 2004). Plaintiff's §1983 claim fails for a number of reasons.

A §1983 claim against a municipality or other local government entity that, like Plaintiff's claim, seeks money damages, cannot be based on the doctrine of respondeat superior, i.e., liability solely because the municipality or entity employs a tortfeasor. *Monell v. Dept. of Soc. Serv. of City of New York*, 436 U.S. 658 (1978). Such liability can only be found when the alleged constitutional deprivation results from an official policy or informal custom adopted by the municipality or entity. *Id.* The analysis that liability under § 1983 cannot be predicated on respondeat superior applies with equal force to § 1985 and § 1986. *Di Maggio v. O'Brien*, 497 F. Supp. 870, 875–76 (E.D. Pa. 1980). Thus, to defeat the present motion, Plaintiff's pleading must set forth the existence of either an official policy or informal custom that has been adopted by Laclede County. Plaintiff fails to allege any facts identifying any policy or custom adopted by Laclede County that resulted in a deprivation of Plaintiff's rights. Rather, he merely relies on conclusory assertions without providing any basis or factual support.

Under the informal custom theory of liability, a local government entity can be held liable under §1983 if a plaintiff can establish a "failure to train" employees that resulted in a constitutional deprivation. A failure to train claim requires the Plaintiff to

establish a "deliberate indifference" to a "pattern of similar constitutional violations by untrained employees." *Connick v. Thompson*, 563 U.S. 51, 61 (2011). No prior pattern of similar behavior has been alleged by Plaintiff that would meet the burden of pleading a failure to train claim.

VIII. Count IV and Count VI of Plaintiff's Amended Complaint are Barred by the Applicable Statute of Limitations and Should be Dismissed

As to Count IV, Mo. Rev. Stat. § 610.027.5, provides that "[s]uit for enforcement [of the Sunshine Law] shall be brought within one year from which the violation is ascertainable and in no event shall it be brought later than two years after the violation." In actions alleging a violation of the Sunshine Law, damages are "ascertainable" "when the fact of damage can be discovered or made known, rather than when a plaintiff actually discovers injury or wrongful conduct." *Colombo v. Buford*, 935 S.W.2d 690, 695 (Mo. Ct. App. 1996); *Bartis v. City of Bridgeton*, No. 406-CV-1574 JCH, 2007 WL 1486024, at *6 (E.D. Mo. May 18, 2007) (applying the statute of limitations to a claim by a police officer that in terminating him, the defendants violated the Missouri Sunshine Act).

As to Count VI, 42 U.S.C. § 1986 contains a statute of limitations stating that "no action under the provisions of this section shall be sustained which is not commenced within one year after the cause of action has accrued." 42 U.S.C. § 1986. This statute of limitations begins to run "at the time that a tortfeasor interferes with a victims [sic] rights." *Peck v. United States*, 470 F.Supp. 1003, 1018 (S.D.N.Y.1979).

Plaintiff alleges his rights were first violated on October 31, 2024. Plaintiff alleges that he submitted his request under Missouri's Sunshine Law on December 7, 2024 and that Defendants failed to respond within three business days. See Plaintiff's Amended Complaint, ¶¶ 131-136. Accordingly, Plaintiff would have been aware of any alleged wrongful conduct under the Sunshine Law by January 2025. Plaintiff did not, however, file his original Complaint until April 2, 2026 [Doc. 1]. Accordingly, Count IV of Plaintiff's Amended Complaint is barred by Mo. Rev. Stat. § 610.027.5.

WHEREFORE Defendants Laclede County, Missouri, Linda Cansler, Amy Folsom, and LaRita Pope respectfully request that the Court dismiss the entirety of Plaintiff's Amended Complaint, award Defendants their costs incurred herein, and grant such other and further relief as the Court deems just and proper.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on July 7, 2026, I caused a copy of the foregoing document to be sent to all counsel of record via this Court's CM/ECF system and via electronic mail to Plaintiff.

/s/ Michael D. Cerulo